

ESA
Director General's Office

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Corporate Policy on Benefits Offered to Staff Members by External Entities

1. INTRODUCTION

It is recalled that Staff Rule 3.1/2 stipulates that “staff members may not accept from government delegates or firms maintaining relations with the Agency any gifts, gratifications or advantages that might affect their independence or lead to doubts as to their professional integrity”. However, “inexpensive publicity gifts” may be accepted. This is also reflected in article 4.2 of the ESA Charter of Values.

In the context of their work, staff members are occasionally offered Benefits by external entities.

In view of the Agency's extensive procurement activities and staff members' status as international civil servants and in order to preserve the Agency's impartiality and independence, the following policy and its associated principles have been established in consultation with the Agency's Staff Association so as to enable staff members to determine the administrative steps to be taken when offered Benefits.

All staff members in receipt of Benefits offered by external entities shall conform fully to this policy, its principles and its associated procedure.

2. POLICY

In order to preserve the Agency's interests and the independence of its staff members, it is the Agency's policy to :

- i. define the principles which govern the conditions under which staff members may accept or not Benefits offered to them by external entities; and,
- ii. establish the procedure to be followed by staff members when offered such Benefits.

3. SCOPE

The present policy covers any Benefit(s) offered to a staff member by an external entity with the exceptions of inexpensive offers to participate at events taking place on an ESA site and hosted by an external entity, e.g. Christmas events.

4. DEFINITIONS

Benefits: For the purpose of this policy Benefits comprise any gifts, gratifications and advantages whatever their nature.

Economic Operator: Any natural or legal person or public entity or group of such persons and/or bodies which offers on the market, respectively, the delivery of supplies, products or services.

Expensive Benefit: A Benefit the value of which is 100 euros or more.

Inexpensive Benefit : A Benefit the value of which is below 100 euros.

Subcontractor: An economic operator who is under contract to a contractor of the Agency to provide supplies or services in support of a contract placed by the Agency.

5. PRINCIPLES¹

5.1 Threshold

The threshold for considering a Benefit as expensive is set at the value of 100 euros.

The threshold covers both one single Benefit and the cumulated value within a period of twelve (12) consecutive months of several Benefits relating to the same external source. Different subsidiaries of the same group are considered to be of the same external source.

5.2 Benefits in the form of financial instruments

Irrespective of its value, any Benefit in the form of a financial instrument (e.g. payments, securities, loans, etc.) must be refused immediately by the staff member who must report it to his immediate supervisor without delay.

5.3 Benefits offered by Economic Operators supplying goods and services to the Agency

Irrespective of its value, any Benefit offered by an Economic Operator (including Subcontractors), in his respective field of expertise, who supplies goods and services to the Agency must be refused immediately by the staff member who must report it to his immediate supervisor without delay provided the staff member was aware of the contractual relationship between the Agency and the said Economic Operator.

5.4 Benefits in the form of invitations

Should the Benefit be in the form of an invitation, the invitation may only be accepted by the staff member if it is strictly work-related and must be notified to his immediate supervisor (before or after the event) if the invitation is estimated to be an Inexpensive Benefit.

The procedural requirement for the declaration of invitations on mission claims, e.g. for restaurant meals, does not dispense staff members from the above mentioned obligation of notification.

¹ These principles shall also be made applicable to on-site contractors

5.5 Estimation of the value of a Benefit

The staff member estimates the value under his own responsibility.

In case of doubt as to the value or the appropriateness of accepting the Benefit, the staff member shall proceed as in the case of Expensive Benefits (see section 5.7 below).

5.6 Acceptance of Inexpensive Benefits

A staff member offered an Inexpensive Benefit may accept it without obtaining the approval of or reporting it to the Agency except in the cases of inexpensive invitations which require notification to the immediate supervisor (see section 5.4 above).

5.7 Acceptance of Expensive Benefits

Should a Benefit (including invitations) exceed the value of 100 euros, a staff member may only accept it after having been authorised to do so by the Department in charge of personnel matters .

The request for authorisation by the Department in charge of personnel matters is to be submitted in writing with the approval of the staff member's hierarchy and shall explain the nature and strength of the relationship with the external entity.

Should the Department in charge of personnel matters consider that the Benefit offered might affect the Agency's interests or the staff member's independence or lead to doubts as to the staff member's professional integrity, it shall where relevant consult the pertaining services prior to taking its decision.

5.8 Returning of a Benefit

In cases where a staff member is not authorised to accept a Benefit, he shall hand over the latter to the Department in charge of personnel matters who shall return the Benefit to the external entity on behalf of the Agency or donate it to charity.

6. ROLES AND RESPONSIBILITIES

6.1 The Director responsible for personnel matters is responsible for ensuring the overall implementation of this policy and its monitoring.

6.2 Directors and Heads of Services reporting directly to the Director General are responsible for ensuring the correct implementation of this policy within their respective Directorates and Services.

6.3 The Head of the Procurement Department is responsible for ensuring that in the frame of on-site contractor support contracts let by the Agency, the latter contain the necessary provisions informing the other party(ies) of the principles established under the present instruction and of any resulting contractual sanctions in case of breach of said principles by the other party (ies).

7. EVALUATION OF THE POLICY

At least six months prior to the end of its period of validity this policy shall be reviewed by the Department in charge of personnel matters to establish whether it requires extension, modification or revocation.

8. VALIDITY

This Instruction is effective for a period of four years as from the date of its entry into force.

9. SUPERSEDED INSTRUCTION

This ADMIN supersedes ESA/ADMIN/IPOL(2009)1 which is revoked.

10. ENTRY INTO FORCE

This Instruction enters into force on the day of its publication.

11. PUBLICITY

The present document shall be releasable to the public upon request.



The Director General